

Reservations & Employment -- DoPT Office Memoranda

Supplemental excerpts (DoPT OMs on PwBD reservation, direct recruitment, and service matters).
Companion to 03_reservation_employment.pdf already in the store.

Source list:

R3.1 DoPT OM on Reservation for PwBDs -- *DoPT*

<https://dopt.gov.in/sites/default/files/OM-Reservation-PwBDs.pdf>

R3.2 DoPT Brochure Ch. 8 -- Reservation in Direct Recruitment -- *DoPT*

<https://dopt.gov.in/sites/default/files/ch-08.pdf>

R3.3 DoPT Brochure Ch. 23 -- Service matters of PwBD employees -- *DoPT*

<https://dopt.gov.in/sites/default/files/ch-23.pdf>

R3.2 -- DoPT Brochure Ch. 8 -- Reservation in Direct Recruitment

Source: DoPT | URL: <https://dopt.gov.in/sites/default/files/ch-08.pdf>

-- p.1 --

CHAPTER VIII

AGE LIMITS

1. Age limits for recruitment to Central Services/posts are prescribed in the Recruitment Rules for the Service/post concerned, having regard to the qualifications and experience prescribed for that Service/post. (In the case of Services/posts, other than technical, professional and specialist Services/posts, the age limits as laid down in the relevant Recruitment Rules are, by and large, based on the general orders issued by the Government of India from time to time vide [MHA OM No. 2/41/59-RPS dated 3-12-59; Deptt. of Personnel OM No. 130/70-PP(IV) dated 11-4-72 and OM No. 4/7/70-Estt(D) dated 13-3-72].

II. General principles for relaxation of age limits.

The general principles to be followed in dealing with individuals cases of relaxation of age limits are indicated below :-

(a) Relaxation of age limits are ordinarily made only where the Recruitment Rules provide for such relaxation. Where it is expected that it may be necessary to make such relaxation a suitable provision should be made in the Recruitment Rules which should indicate also the authority competent to make the relaxation. If no such relaxation is provided for in the Recruitment Rules the provision of clauses (b) and (d) below will apply.

(b) Where Recruitment Rules have been framed in consultation with the Union Public Service Commission, the relaxation of the age limits prescribed therein should not be made without consultation with the Commission.

(c) Where the Services/posts are excluded from the purview of the Union Public Service Commission and Recruitment Rules have, therefore, been framed without consultation with the Commission, the age limits prescribed in the Rules should not be relaxed without the concurrence of the Ministry controlling the Service or post concerned.

(d) The above arrangement is subject to any general instructions issued by the Ministry of Home Affairs (Now Department of Personnel and Training) providing for relaxation of age limits in respect of particular categories/persons e.g. in respect of displaced persons; persons belonging to Scheduled Castes etc. as well as any instructions specifically requiring the Department of Personnel & Training to be consulted in respect of any class of cases e.g. relaxation for purposes of issue of declaration of quasi-permanency certificates etc.

[M.H.A. OM No. 4/1/55-RPS dated 12-2-55.]

III. Extent of relaxation of maximum age limits sanctioned for certain categories.

(i) Scheduled Castes and Scheduled Tribes

The maximum age limit prescribed for appointment to a service or post is to be increased by five years in the case of candidates belonging to Scheduled Castes/Scheduled Tribes. This concession is applicable to all Services/Posts filled by direct recruitment.

Where an upper age limit not exceeding 50 years is prescribed in posts/ services filled by promotions, it shall be relaxed by 5 years in the case of candidates belonging to Scheduled Castes and Scheduled Tribes. This, however, would not apply to posts which have arduous field duties or are meant for operational safety and to posts in para Military organisations.

[M.H.A. Resolutions No. 42/19/51-NGS dated 25-6-52 and No. 15/1/55-SCT dated 30-4-55 and Deptt. of Personnel OM No. 21 /9/70-Estt(SCT) dated 8-12-71.]

152

-- p.2 --

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(ii) Displaced persons from East Pakistan (now Bangladesh)

Displaced persons who migrated to India from East Pakistan (now Bangladesh) on or after 1-1-64 but before 26-3-71 are entitled to the following age concessions :-

(a) For appointments filled on the result of competitive examination held by the UPSC (other than Defence Services Examinations), a relaxation of age limit upto 3 years in excess of the normal upper age limit, subject to the condition that a candidate is not allowed to avail of a larger number of chances in respect of recruitment to a service or group of services than the maximum number of chances permissible to any 'general candidate under normal age limits.

(b) For appointments not covered by (a) above, the maximum age limit for entry into Government Service as well as for permanent absorption therein is relaxed upto 45 years.

In the case of displaced persons belonging to Scheduled Castes or Scheduled Tribes, the age limits mentioned in (a) & (b) above are further relaxable by five years for persons belonging to Scheduled Castes and Scheduled Tribes, in the case of all the posts in Central Services as well as in All India Services.

The above age concessions, are in force 'upto 31st December, 1987 and are not admissible to those displaced persons who have migrated 'to India from Bangladesh after 25th March, 1971. In order to qualify for the above concessions, the candidates concerned are required to produce satisfactory evidence of being bona-fide displaced persons from East Pakistan (now Bangladesh), who have migrated to India on or after 1-1-64 but before 26-3-71. For this purpose, the bona fides of the displaced persons will be certified by the Commandant .cif the Transit Centre of the Dandakaranya Project, or the Camp Commandant of the Relief Camps in various States, or the District Magistrates of the areas 'where the candidate may, for the time being, be resident, or the Additional District Magistrate in charge of Refugee Rehabilitation in their respective districts, or the Sub-Divisional Officer within the Sub-Division in his charge or the Deputy Refugee Rehabilitation Commissioner, West Bengal•Director (Rehabilitation), Calcutta.

[MBA OM No. 4/5/64-Estt(D), dated 11-8-64, OM No. 4/5/67-Estt(D) dated 20-12-67, OM No. 4/3/69-Estt(D) dated 20-11-69, Dep'tt. of Personnel OM No. 4/3/70-Estt(D), dated 17-9-70 OM No. 4/6/71-Estt(D) dated 27-12-71, OM No. 4/5/73-Estt(D) dated 5-4-74 and No. 15012/1/84-Estt(B), dt. 2-1-85.]

(iii) Repatriates. from 'Burma and Ceylon (now Sri Lanka)

(1) The repatriates from Burma who have migrated to India or will be migrating on or after 1st June 1963, and the repatriate from 'Ceylon (now Sri Lanka), who migrated or will be migrating to India on or after 1-11-64, under the Indo-Ceylon Agreement . of October, 1964, have been granted the same age concessions as are admissible to displaced persons from East Pakistan (now Bangladesh), mentioned at (ii) (a) (b) & "(c) above.

These concessions are not admissible in respect of examinations for entry into the Defence Services.

(2) The maximum age limit for appointment to Group C and D posts, recruitment to which is made through the Employment Exchange, in the case of repatriates from Burma and Ceylon (now Sri Lanka), referred to above, is relaxable upto 45 years, with a further relaxation upto 5 years in the case of persons belonging to Scheduled Castes/Scheduled Tribes.

The above concessions, which came into force from 1st March, 1966 are admissible upto 31st December, 1987.

In order to be eligible for the concessions at (1) & (2) above, migrants from Burma should produce the identity certificate issued to them by the Embassy of India in Rangoon, in

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154

support of their claim for being treated as such. It is only when a repatriate from Burma does not possess the identity certificate that it will be necessary for him to produce a certificate from the District Magistrate of the area, where they may be residing, that they are bona fide repatriates from Burma. Similarly, the migrants from Ceylon (now Sri Lanka) claiming to be repatriates from that country should produce a certificate to that effect from High Commission for India in Ceylon (now Sri Lanka). Those repatriates from Burma & Ceylon (now Sri Lanka) who seek employment through Employment Exchange, should produce the necessary documents, mentioned above, before the Employment Exchange, while registering their names with the Exchange.

[M.H.A. OM No. 14/30/64-Estt(D) dated 4-10-65, 12-11-65 and 8-2-66 and No. 4/6/68-Estt(D) dated 4-12-68 and Deptt. of Personnel O.M. No. 4/9/71-Estt(D), dated 27-12-71 & OM No. 4/7/73-Estt(D), dated 19-4-74 and No. 15012/1/84-Estt.(D), dated 2-1-85.1

(iv) Repatriates from East African countries

(1) In respect of posts which are filled otherwise than through the Union Public Service Commission, viz. through Employment Exchange, there is no age restriction for entry in the case of persons of Indian origin who were employed in Government service in the East African countries of Kenya, Uganda and Tanzania (i.e. formerly Tanganyika and Zanzibar), who migrated to India due to constitutional changes in these countries or who is a repatriate of Indian origin from Zambia, Malawi, Zaire and Ethiopia.

(2) As regards recruitment to Services/posts under the Government of India, persons of Indian origin who migrated to India from the above-mentioned countries are entitled to the following age concessions :-

(a) The upper age limit for admission to the competitive examinations conducted by the UPSC or by any other authority for recruitment to the Civil Services/posts under the Central Government is relaxable by 3 years.

(b) The upper age limit, for the purpose of appointment to Services/posts under the Government of India, which are filled on the basis of selection/interview by the UPSC, is relaxable upto 45 years.

The above concessions are admissible upto 31-12-1987. These concessions are, however, not applicable to Defence Services Examinations. In order to qualify for age concessions referred to above, the persons concerned will have to produce satisfactory evidence about their being bona-fide repatriates from East African countries concerned from the District Magistrates of the area in which they may, for the time being, be residing.

[M.H.A. OM No. 14/12/64-Estt(D), dated 19-10-64 and 30-11-64. OM No. 4/4/67-Estt(D) dated 7-11-67, OM No. 4/1/68-Estt(D), dated 29-11-68; OM No. 4/1/69-Estt(D) dated 10-12-69; Deptt. of Personnel, OM No. 4/1/69-Estt(D) dated 26-12-70, OM No. 4/11/71-Estt(D) dated 13-12-71, OM No. 4/11/71-Estt(D), dated 30-1-73 and Deptt. of Per. & A.R. OM No. 4/8/73-Estt(D) dated 28-12-73 and Nos. 15012/1/84-Estt (D), dated 2-1-85 and 28-2-85.1

(v) Repatriates from Vietnam

Persons of Indian origin who have migrated from Vietnam to India due to constitutional changes are entitled to the following concessions :

(a) The upper age limit for admission to the competitive examinations conducted by the U.P.S.C. or by any other authority for recruitment to the civil services/posts under the Central Govt. is relaxable by 3 years.

(b) The upper age limit, for the purpose of 'appointment to services/posts under the Govt. of India which are filled on the basis of selection/interview by the U.P.S.C.,

is relaxable upto 45 years,

111

-- p.4 --

156

These concessions are, however, not admissible for defence services examinations.

The concessions will be applicable to those who are Indian nationals (Indian passport holders) as also those holding Emergency Certificate issued to them by the Indian Embassy in Vietnam and who arrived in India from Vietnam not earlier than July, 1975.

In order to qualify for the above concessions the persons concerned will have to produce satisfactory evidence about their being bona-fide repatriates from Vietnam from the District Magistrates of the areas in which they may, for the time being, be resident.

The concessions are admissible upto 31st December, 1987.

[DOP & AR OM No. 15012/1/84-Estt(D), dated 2-1-85.1

(vi) Displaced persons from erstwhile West Pakistan

Displaced persons from erstwhile West Pakistan who migrated to India during the period from 1st January, 1971 to 31st March, 1973 are entitled to the following age concessions :

(a) For appointments filled on the results of competitive examinations held by the UPSC (other than Defence services examination), a relaxation of age limit upto 3 years in excess of the normal upper age limit, subject to the condition that a candidate is not allowed to avail of a larger number of chances in respect of recruitment to a service or group of services than the maximum number of chances permissible to any general candidate under normal age limits.

(b) For appointments not covered by (a) above, the maximum age limit for entry into Government service as well as for permanent absorption therein is relaxed upto 45 years.

(c) In the case of displaced persons belonging to Scheduled Castes or Scheduled Tribes, the age limits mentioned in (a) above are further relaxed by five years in the case of all the posts in Central services as well as in All India Services.

The above age concessions would apply to only those examinations/interviews for which the advertisements/notices were issued after 2-1-85 and will remain valid upto 31-12-87.

In order to qualify for the above concessions the candidates are required to produce satisfactory evidence of being bona-fide displaced persons from erstwhile West Pakistan having migrated during the specified period. Their bona-fides will be certified by the Commandants of Transit Centres or Camp Commandants of Relief Camps in various States or District Magistrates of the areas where the candidates may, for the time being, be resident or Addl. District Magistrates in charge of the refugees' rehabilitation in their districts or the Sub-Divisional officer within the Sub-Division in his charge or the Deputy Refugee Rehabilitation Commissioner.

[DOP & AR OM No. 15012/1/84-Estt(D), dated 2-1-1985.1

(vii) Retrenched Central Government employees

For appointments made otherwise than on the basis of open competitive examination held by the UPSC or any other authority the period of retrenched Central Government employees' previous service should be deducted from his actual age and, if the resultant age does not exceed the prescribed maximum age limit by more than 3 years, he should be deemed to satisfy the condition of upper age limit for appointment to the post in question under the Central Government. 'A Retrenched Central Government Employee' is a person who has rendered continuous service for a period of net less than six months under the Government of India and was discharged as a result of the recommendations of the Economy Unit or due to reduction in establishment. For the purpose of availing the age concession a retrenched Central Government employee should produce a certificate from the last Ministry/Office to this effect and that he is

suitable for employment under the Government of India.

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(viii) The retrenched staff of the Rehabilitation Departments of various States in India are to be treated on par with the retrenched Central Government employees for the purpose of relaxation of upper age limits.

[M.H.A. OM No. 58/2/50-DGS dated 5-6-50; OM No. 4/13/54-RPS, dated 14-1-55; OM No. 4/4/59-RPS dated 25-11-59; OM No. 4/19/56-RPS dated 1-8-56 and OM No. 4/4/64-Estt(D) dated 29-7-64; Notification No. 2/101/72-Estt(D) dated 7-3-74.]

(ix) Demobilised personnel of Armed Forces & Ex-Servicemen

All demobilised personnel of Armed Forces and released ex-servicemen who have completed six months of continuous service in the Armed Forces before their release and who have been released otherwise than by way of dismissal or discharge on account of misconduct or inefficiency, should be allowed the same concession regarding the relaxation of upper age limit as is admissible to retrenched Central Government employees for the purposes of re-employment under the Central Government. In other words, for the purpose of appointments made otherwise than on the basis of the open competitive examination conducted by the U.P.S.C. the services rendered in the Army, Navy and Air Force by an individual should be deducted from his actual age and if the resultant age does not exceed the prescribed maximum age limit for the post by more than 3 years he should be deemed to satisfy the condition for appointment to the post concerned in respect of maximum age. For qualifying for the above concessions the demobilised personnel of the Armed Forces or Ex-servicemen should produce a certificate from the Army authorities etc., that he had rendered a continuous service of six months in Armed Forces before release and that he had been released otherwise by way of dismissal or discharge on account of misconduct or inefficiency. For the purposes of calculating the period of six months service referred to above the pre-merger service of persons in the Indian State Forces may also be taken into account in the case of absorption of surplus /retrenched Central Government Commissioned Officers in Group A and 'Group B posts.

[Deptt. of Pers. & A.R. Notfn. No. 13/24/73-Estt(C) dated 26-10-1974.]

(x) Disabled Defence Services Personnel

(a) For appearing at the competitive examination conducted by U.P.S.C. for appointments to Group A, B, C and D posts, the disabled Defence Services personnel would be allowed, if

they are otherwise educationally qualified, relaxation of age limits upto 3 years (8 years in the case of disabled Defence Services personnel belonging to Scheduled Castes/Scheduled Tribes) in excess of the prescribed upper age limit, subject to the conditions that they would not be allowed to avail of larger number of chances in respect of recruitment to a service or a group of services than maximum number of chances permissible to any candidate under the normal age limit. The above relaxation may be extended to competitive examinations for recruitment to Group C posts held by bodies other than the UPSC, like the Staff Selection Commission.

(b) For appointments to Group A and Group B posts which are normally made through the UPSC otherwise, than on the result of the competitive examination conducted by the commission, disabled Defence Services personnel who possess the required qualifications and experience and whose age does not exceed 45 years (50 years for disabled personnel belonging to Scheduled Castes/Scheduled Tribes) will be considered by the Union Public Service Commission.

(c) For appointments to Group C and Group D posts which are filled through the Employment Exchange, the upper age limit in the case of disabled Defence Services personnel will

be relaxed upto 45 years (50 years in the case of disabled Defence Services personnel belonging to Scheduled Castes & Scheduled Tribes).

1-MT-IA OM No. 14/42/65-Estt.(D), dated 29-3-66 and Deptt. of Personnel OM No. 13/71-Estt (C) , dated 24-12-71.]

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(d) The above concessions applicable to war-time disabled defence services personnel have been extended to ex-servicemen disabled in peace time, but their disability being attributable to military service.

[DOP&AR OM No. 39016/5/81-Estt(e), dt. 21-2-81.]

(xi) Ex-NCC Cated Instructors

Persons recruited from 1-1-63 onwards as whole-time Cadet Instructors in NCC shall on release from the NCC on the expiry of the initial/extended tenure, be treated as "Retrenched Central Government Employees", for the purposes of relaxation of upper age limits for appointments in Central Government i.e. they will be allowed to deduct from their actual age the period of service rendered by them in the NCC and if the resultant age does not exceed the prescribed age limit of a particular post by more than three years, they will be deemed to be satisfying the condition for appointment to that post in respect of the maximum age. Such of the whole-time Cadet Instructors in the NCC, as are released from the NCC before the expiry of the initial or extended tenure, should also be allowed the same age concession as has been sanctioned to whole-time Cadet Instructors in the NCC, who are released after expiry of the initial or extended tenure, subject to the condition that they have served in the NCC for a period not less than six months before their release. For availing of above concessions, the Cadet Instructors in question should produce before the Employment Exchange a certificate to the above effect.

[MHA OM No. 4/6/65-Estt(D), dated 9-12-65 and 13-9-66 & Notification No. 2/101/72-Estt(D), dt. 7-3-74.]

(xii) Ex-Personnel of Territorial Army

For appointments to Civil posts, ex-personnel of the Territorial Army are to be treated as "Retrenched Central Government Employees" for the purposes of relaxation of upper age limits, provided they have served on the permanent staff of Territorial Army, or have been embodied for service under the Territorial Army Rule 33 for a continuous period of not less than six months.

For the purposes of age relaxation, the entire period of embodied service (including broken period) in the Territorial Army plus three years shall be taken into account.

[MHA OM No. 4/6/64-Estt(D), dated 11-2-1965 & Notification No. 2/101/72-Estt(D) dt. 7-3-74.]

(xiii) Ex-Employees of General Reserve Engineer Force

For appointments to Civil posts made otherwise than on the basis of the open competitive examinations held by the UPSC or any other authority, ex-employees of General Reserve Engineer Force have been sanctioned the same concession in regard to upper age limits as is admissible to "Retrenched Central Government Employees."

For the purposes of availing of the above concessions, the persons concerned are required to produce a certificate from General Reserve Engineer Force to the effect that they had served in the said Force for a period of not less than six months and had been released from that Force on completion of their tenure of service under that Force.

[MHA OM No. 4/10/64-Estt(D), dated 26-10-64 & Notification No. 2/101/72-Estt(D) dt. 7-3-1974.]

(xiv) Ex-Personnel of Army Medical Corps (Short Service Regular Commissioned Officers)

In the case of medical graduates who joined the Army Medical Corps as Short Service Regular Commissioned Officers, the 'upper' age limit is to be relaxed upto 35 years for appointment to civil posts under the Central Government, which require medical qualifications. [M.H.A. OM No. 4/3/55-RPS dated 13-7-1956.]

-- p.7 --

168

(xv) Ex-TB patients, Etc.

In the case of

patients, who were formerly in Government service but whose services were terminated on account of affliction with 'LB, and who were subsequently declared non-ineffective and medically fit for Government service by a T.B. Specialist or a medical authority authorised in this behalf by the Government of India, the condition regarding age limit is not to be enforced for re-appointment to the posts previously held by them or equivalent posts in their own Departments. As for appointments to posts in any other Department through Employment Exchange, they are to be treated as "Retrenched Central Government Employees" for the purpose of age concession.

The above concession granted to ex-TB patients is admissible also to ex-pleurisy and ex-leprosy patients. The appointment of ex-leprosy patients, is however, subject to the conditions mutatis-mutandis specified in the Ministry of Health OM No. 5 (II)/41/56-M.II dated 24th October, 1957.

NBA OM No. 37/1/52-DGS, dated 10-7-54; OM No. 13/4/56-RPS, dated 29-9-56 and OM No. 13/4/57-RPS dated 14-7-58.]

(xvi) Casual Labourers for their Absorption in Regular Establishment in Group D

Casual labourers are entitled to deduct from their actual age the period spent by them as casual labourers and if, after deducting this period, they are within maximum age limit prescribed for the service or post in regular establishment, they would be considered eligible in so far as the condition of upper age limit is concerned. Broken periods of service rendered by casual labourers may also be taken into account for the purposes of age relaxation for appointments in regular establishments, provided that one stretch of such service is for more than six months.

[MHA OM No. 4/9/61-Estt(D), dated 9-8-61 and 16-9-61 and DOP&T Notification No. 2/101/72-Estt(D), dated 7-3-1974.]

(xvii) Group D employees for appointment to Group C posts

Group D employees of Central Government after getting "no objection" certificate from their Departments and having registered with Employment Exchanges for Group C posts, are allowed to deduct from their actual age, the period spent by them in Government service. If after deducting this period, they are within the maximum age limit prescribed for the service/post concerned, they are to be considered eligible.

For appointment of educationally qualified Group D employees to the posts of Lower Division Clerks in attached and subordinate offices not participating in the Central Secretariat Clerical Service Scheme, against the 10 per cent quota reserved for them, the upper age limit is relaxable upto 45 years (50 years for Scheduled Castes and Scheduled Tribes candidates).

[MHA OM No. 71/75/55-CS(C), dated 29-4-55 and Deptt. of Personnel OM No. 14/9/71-Estt(C), dated 21-8-71.]

(xviii) Departmental candidates for appointment to Groups C & D posts

For direct recruitment in Groups C and D posts/services, the upper age limit will be relaxable upto the age of 35 years in respect of persons working in posts which are in the same line or allied cadres and where a relationship could be established that service rendered will be useful for efficient discharge of the duties in other categories of posts. The age concession will be admissible only where an employee has rendered not less than three years continuous service.

The question of determining the same line or allied cadre is, however, left to be decided by each Ministry/Department.

Candidates belonging to SC/ST will have relaxation in age upto 40 years.

The existing age concession available to Group D employees for appointment to Group C posts and to clerks for appointment as Stenographers in the Central Secretariat Stenographers Service and any other existing age concessions shall continue.

[DO P&AR OM No. 4/4/74-Estt(D), dated 20-7-76, No. 15012/2/81-Estt(D), dated 8-4-81, DOP & T OM No. 35014/4/79-Estt(D), dated 24-10-85 and 18-11-85.]

-- p.8 --

160

(xix)

Work-charged staff

The concession at (xviii) above are extended to regular work-charged employees, who were appointed through the Employment Exchange.

[DOP & AR OM No. 15012/11/76-Estt(D), dated 27-6-78.]

(xx)

Physically handicapped persons

For the purpose of appointment to Group C and Group D posts under the Central Government filled through Soli Selection Commission or the Employment Exchanges, the physically handicapped persons (Blind, Deaf and Orthopaedically handicapped) are entitled to relaxation of upper age limits by ten years.

[M.H.A. OM No. 4/3/68-Estt(D), dated 15-4-1969 and DOP & AR OM Nos. 15012/6/77-Estt(D), dated 28-1-78 and 17-7-78.]

(xxi) Displaced Goldsmiths

The upper age limit is relaxed in case of bona fide displaced goldsmiths i.e. those who were in possession of identification certificates from Revenue officials not lower in rank than the officer-in-charge of Tahsils, or Talukas or Revenue Thanas, to the effect that they were actually engaged in working, either solely or mainly, on gold and either as a self-employed person or a paid employee or as out worker for a period of at least six months preceding the date of issue of Gold Control Rules (viz. 10-1-63) to the extent shown below :—

(i) For employment as craftsmen and semi-skilled workers in Industrial Establishments upto 45 years.

- (ii) For employment in Group C and Group D posts in non-industrial Establishments/ Offices where recruitment is made otherwise than through a competitive examination held by the U.P.S.C. or any other authority, by 5 years.

OM No. 7/5163-Estt(D), dated 20-7-1963 and Notification No. 2/101/72-Estt(D) dated 7-3-74.]

(xxii)

Widows and women separated from their husbands

For appointment to Groups C and D posts filled through the Staff Selection Commission/ Employment Exchanges the upper age limit for widows and divorced women and women judicially separated from their husbands, who are not remarried shall be relaxed upto 35 years (40 years in the case of members of SC/ST).

[DOP & AR OM No. 15012/13/79-Estt(D), dated 19-1-80.]

(xxiii)

Persons who resided in the State of Assam during the period from 1-1-80 to 15-6-85.

(a) For appointments to all the Central Civil Services and posts, recruitments to which are made through the U.P.S.C. or S.S.C. as also recruitment to all Civil posts in the Central Govt. offices located in the State of Assam, otherwise than through U.P.S.C. or S.S.C., a relaxation in

the upper age limit upto a maximum of six years shall be admissible to all persons who had ordinarily resided in the State of Assam during the period from 1-1-80 to 15-8-85.

(b) The relaxation in the upper age limit for appearing at any examination shall be subject to the maximum number of chances permissible under the relevant rules.

(c)

Candidates availing of this relaxation shall submit a certificate from the District Magistrate, within whose jurisdiction he ordinarily resided or any other authority designated in this behalf by the Govt. of Assam, to the effect that he had been a resident of the State of Assam during the period from 3-1-80 to 15-8-85.

(d)

The concession is valid for a period of .: years from 30th September, 1985.

[DOP & T Notification No. 15012/4/85-Estt(D) dated 30-9-85 read with their Notification No. 15012/4/85-Estt(D), dated 16-10-1986]

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160

Miscellaneous Provisions :

Normal age limits are not applicable to and consequently the question of relaxation of age limit does not apply, in the case of :-

(i) Officers granted compensations or invalid pension, who are subsequently re-employed under Articles 514 and 519, CSRs; and

(ii) Ex-central Government servants who were removed, discharged or dismissed from service on account of their patriotic activities or their participation in national movements, designed to secure independence of the country or who resigned their appointments out of patriotic motives, for their re-employment under the Government.

[M.H.A. OM No. 15/21/48-Estt. dated 11-7-49 and M/o Finance U.O. No. 4210/E.V./52, dated 1-8-1952.]

Relaxation of upper age limit to the Ex-servicemen, Commissioned Officers including ECOs/SSCOs, for appointment to Group A and Group B posts filled by direct recruitment, is as under :

(i) The upper age limit shall be relaxed by the length of military service increased by three years in the case of ex-servicemen and commissioned officers including ECOs/SSCOs for appointment to any vacancy in Group A and Group B services/posts filled by direct recruitment otherwise than on the results of an open All India Competitive Examination held by the U.P.S.C. subject to the condition that (i) the continuous service rendered in the Armed Forces by an ex-serviceman is not less than six months after attestation and (ii) that resultant age after deducting his period of service from his actual age does not exceed the prescribed age limit by more than three years and also subject to usual conditions which have been prescribed in respect of appointment of ex-servicemen to Group C and Group D posts vide Department of Personnel & Training Notification No. 39016/10/79-Estt.(C), dated 15-12-1979.

(ii) For appointment to any vacancy in Group A and Group B services/posts filled by direct recruitment on the results of an All India Competitive Examination held by U.P.S.C. the ex-servicemen and Commissioned Officers including ECO/SSCO who have rendered at least 5 years military service and have been released on completion of assignment (including those whose assignment is due to be completed within 6 months) otherwise than by way of dismissal or discharge on account of misconduct or inefficiency, or on account of physical disability attributable to military service

or on invalidment, shall be allowed maximum relaxation of five years in the upper age limit.

Departmental of Personnel and Training OM No. 39016/15/79-Estt.(C), dated 7-9-1981.

It has been decided in consultation with the Ministry of Defence and the Union Public Service Commission that the ECOs/SSCOs who have completed their initial period of assignment of five years of Military service and whose assignment has been extended beyond five years and in whose case the Ministry of Defence issues certificates that they will be released within three months on selection and from the date of receipt of offer of appointment, would be permitted to appear in the competitive examinations conducted by the UPSC for posts in Group 'A' & 'B' filled by both the methods, namely (i) direct recruitment otherwise than on the results of an open all-India competitive examination, and (ii) on the results of an all-India competitive examinations conducted by the Union Public Service Commission.

[DP&T OM No. 36034/3/86-Estt. (SCT), dated 17-7-86.]

R3.3 -- DoPT Brochure Ch. 23 -- Service matters of PwBD employees

Source: DoPT | URL: <https://dopt.gov.in/sites/default/files/ch-23.pdf>

-- p.1 --

CHAPTER XXIII

EX-SERVICEMEN

1. Short title and commencement

(1) These* rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979.

(2) They shall be deemed to have come into force on the first day of July, 1979.

2. Definitions

In these rules, unless the context otherwise requires—

(a) "Armed Forces of the Union" means the naval, military and air forces of the Union;

(b) "disabled ex-serviceman" means an ex-serviceman who while serving in the Armed Forces of the Union was disabled in operations against the enemy or in disturbed areas;

"ex-serviceman" means a person, who has served in any rank (whether as a combatant or as non-combatant), in the Armed Forces of the Union, including the Armed Forces of the former Indian States, but excluding the Assam Rifles, Defence Security Corps, General Reserve Engineering Force, Lok Sahayak Sena and Territorial Army, for a continuous period of not less than six months after attestation, and

(i) has been released, otherwise than at his own request or by way of dismissal or discharge on account of misconduct or inefficiency, or has been transferred to the reserve pending such release; or

(ii) has to serve for not more than six months for completing the period of service requisite for becoming entitled to be released or transferred to the reserve as aforesaid; or

(iii) has been released at his own request after completing five years' service in the Armed Forces of the Union;

(d) "para-military forces" means the Border Security Force, Central Reserve Police Force, Indo-Tibetan Border Police;

Central Industrial Security Force, Secretariat Security Force, Assam Rifles, and Railway Protection Force;

(e)

"reserved vacancies" means vacancies reserved under Rule 4 for being filled by ex-servicemen.

3. Application

These rules shall apply to all the Central Civil Services and Posts, Group 'C' and Group 'D' and to the posts of the level of Assistant Commandant in all para-military forces.

4. Reservation of vacancies

(1) Ten per cent of the vacancies in the posts of the level of Assistant Commandant in all Para-military forces; ten per cent of the vacancies in each of the categories of Group 'C' posts and of such posts in each group 'C' Service; and twenty per cent of the vacancies in each of the categories of Group 'D' posts and of such posts in each Group 'D' Service. including permanent vacancies filled initially on a temporary basis and temporary vacancies which are likely

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Notification No. 39016/10179 E:tt.(C), dated the 15th December, 1979.

305

(c)

306

to be made permanent or are likely to continue for three months and more, to be filled by direct recruitment in any year shall be reserved for being filled by ex-servicemen :

Provided the percentage of reservation so specified for ex-servicemen in a category of posts shall be increased or decreased, in any one recruitment year to the extent to which the total number of vacancies reserved for ex-servicemen, Scheduled Castes and Scheduled Tribes (including the carried forward reservations for Scheduled Castes and Scheduled Tribes) and for any other categories taken together, falls short or is in excess as the case may be, of fifty per cent of the vacancies in that category of posts filled in that year

Provided further that in case of an increase in the reservation for the ex-servicemen under the preceding proviso the additional vacancies so made. available for them shall be utilised first for the appointment of disabled ex-servicemen and if any such vacancies still remain unfilled thereafter the same shall then be made available to other ex-servicemen.

2. Out of the vacancies reserved for being filled by ex-servicemen, vacancies shall be reserved for candidates belonging to the Scheduled Castes and Scheduled Tribes in accordance with such orders as are issued in this behalf by the Central Government from time to time :

Provided that if any ex-serviceman belonging to the Scheduled Caste or Scheduled Tribe is selected, his selection shall be counted against the overall quota of reservations that shall be provided for the Scheduled Castes or Scheduled Tribes in accordance with the orders issued by the Central Government from time to time.

(3) No vacancy reserved for ex-servicemen in a post to be filled otherwise than on the results of , an open competitive, examination, shall be filled by the appointing authority by any general candidate, until and unless the said authority-

, (i) has Obtained a 'Non-availability Certificate' from the employment exchange (where a requisition is placed on an employment exchange);

(ii) has verified the non-availability of a suitable candidate by reference to the Director General Resettlement and recorded a certificate to that effect; and

(iii) has obtained approval of the Central Government.

5.

Special provision regarding age limit

For appointment to any vacancy in Central Civil Services Group 'C' and • Group 'D', whether reserved or not under these rules, every ex-serviceman who has put in not less than six months continuous service in the Armed Forces of the Union shall be allowed to deduct the period of such service from his actual age and if the resultant age does not exceed the maximum age limit prescribed for the post or service for which he seeks appointment by more than three years, he shall be deemed to satisfy the condition regarding age limit.

6.

Special provision regarding educational qualification

(1) For appointment to any reserved vacancy in Group 'D' posts. every-ex-serviceman who has put in not less than three years service in the Armed Forces of the Union shall be exempt from the minimum educational qualification. if any, prescribed in respect of such posts.

(2 ■ For appointment to any reserved vacancy in Group 'C' posts, the appointing authority may. at its discretion, relax the minimum educational qualification, where such qualification prescribed is a pass in the Middle School Examination or any lower examination, in favour of ex-servicemen who have put in at least three years service in the Armed Forces of the Union and who are otherwise considered fit and suitable for appointment to such posts, in view of their experience and other qualifications.

307

(3) For appointment to any reserved vacancy in Group 'C' posts, to be filled partly by direct recruitment and partly by promotion or transfer, where the minimum educational or technical qualification prescribed for appointment by direct recruitment is higher than that prescribed for promotees or transferees, an ex-serviceman shall be deemed to satisfy the prescribed educational or technical qualification if he,—

- (i) satisfies the educational or technical qualification prescribed for direct recruitment to the post from which promotion or transfer to the post in question is allowed; and
- (ii) has identical experience of work in a similar discipline and for the same number of years in the Armed Forces of the Union, as prescribed for promotees or transferees.

1[(4) "For appointment to any reserved vacancy in Group 'C' posts, a Matriculate Ex-Serviceman (which term includes an ex-serviceman, who has obtained the Indian Army Special Certificate of Education or the corresponding Certificate in the Navy or Air Force); who has put in not less than 15 years of service in the Armed Forces of the Union may be considered eligible for appointment to the post for which the essential educational qualification prescribed is graduation and where

- (a) work experience of technical or professional nature is not essential; or
- (h) though non-technical professional work experience is prescribed as essential yet the appointing authority is satisfied that the ex-serviceman is expected to perform the duties of the post by undergoing on the job training for a short. duration.

(5) For appointment to any reserved vacancy in Group 'C' and Group 'D' posts, where the prescribed minimum educational -qualification is matriculation, the appointing authority may, at his discretion relax the minimum educational qualifications in favour of an ex-serviceman who has passed the Indian Army Class-I Examination or equivalent examination in the Navy or the Air Force, and who has put in at least 15 years of service in the Armed Forces of the Union and is otherwise considered fit to hold the post, in view of his experience and other qualifications."1

Explanation =For the purposes of this rule, in computing the period of three years service, there shall be added any period of service which an ex-serviceman has rendered while serving in a corresponding post or posts in a civil department, or a public sector undertaking or an autonomous organisation, whether under the Central Government or any State Government, or in a Nationalised Bank to the period of Service rendered in the Armed Forces of the Union.

6A.

Lower Standard for Selection

In the case of direct recruitment, if sufficient number of candidates belonging to the ex-servicemen are not available on the basis of general standard to fill all the vacancies reserved for them, candidates belonging to the category of ex-servicemen may be selected under a relaxed standard of selection to make up the deficiency in the reserved quota subject to the condition that such relaxation will not affect the level of performance by such candidates.

7. Amendment of recruitment rules

All rules relating to the recruitment of persons to Group 'C' and Group 'D' posts and services under the Central Government shall be subject to the provisions of these rules and shall be construed accordingly.

8. Interpretation

If any question arises as to the interpretation in these rules, the same shall be decided by the Central Government.

1 Inserted by Dept. of Personnel & Training. Notification No. 15012/8182-Estt. (D). dated the 12th

Fehrip.rv.

1986 and published as G.S.R. Nn. 160 in Part U. Section 3, Sub-Section (i) of Gazette of India. dated 1st mrreh.

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-- p.4 --

308

Explanatory Memorandum to the Ex-Servicemen (Re-employment in Central Civil Services and Posts) Rules. 1979

Under the Ex-servicemen (Reservation of Vacancies in the Central Civil Services and Posts, Class III and Class IV) Rules, 1974, the reservations for ex-servicemen were available in the vacancies filled by direct recruitment in the Central Civil Services and Posts, Class III and Class IV. These rules ceased to be in force with effect from the 1st July, 1979. Since the problem of rehabilitation of ex-servicemen is a continuing feature, it has been decided to make available to the ex-servicemen certain facilities for their rehabilitation in Civil employment on a permanent basis. In formulating the present rules the provisions of the Ex-servicemen (Reservation of Vacancies in the Central Civil Services and Posts Class III and Class IV) Rules, 1974, and the decisions taken on the recommendations of the Working Group of officers on Resettlement of Ex-servicemen with regard to changes in those rules including change in the nomenclature of the rules have been taken into account. This will not adversely affect the rights of any person.

Special concessions/relaxations admissible to ex-servicemen disabled in action and to families of the defence service personnel killed/severely disabled in action.—The priorities for

extension of welfare and resettlement benefits to ex-servicemen have been revised vide Personnel & Adm. Reforms Department's O.M. No. 14024/6/77-Estt. (D), dated 31st December, 1979. It has been provided in the said O.M. that for the purpose of appointment to Group 'C' and Group 'D' posts under the Central Government filled by direct recruitment, the ex-servicemen disabled whether during war or in peace-time, but their disability being attributable to military service, shall be accorded Priority-I along with retrenched employees of Government who are already included in that priority. It has also been provided in the said O.M. that up to two members each of the families of defence services personnel killed in service or severely disabled (with over 50% disability and who have become unfit for employment with their disability attributable to military service) whether during war-time or peace-time would be granted priority immediately after the disabled ex-servicemen. i.e., Priority-II A.

2. For the purpose of this concession, the members of the families of such deceased severely disabled Defence Services personnel would include besides his widow, his son/daughters/near relations who agree to support his family.

3. The question of extending the relaxation in age limit, medical standards and educational qualification as at present granted to war-time disabled defence services personnel to the peace-time disabled defence services personnel has been considered by the Government. It has been decided that these concessions should be made available to peace-time disabled defence services personnel also.

The existing instructions relating to these concessions for absorption of disabled defence

services personnel in Group 'C' and Group 'D' posts are consolidated with certain changes

wherever necessary in the succeeding paragraphs :—

(i) Medical standards

The disabled Defence Service personnel will be examined by a Demobilisation

Medical Board of the Defence Services and the certificate of fitness granted by that Board would be considered adequate for the purpose of employment of such personnel in Group 'A' to Group 'D' posts. The Ministry of Defence will in consultation with the Ministry of Home Affairs lay down satisfactory norms of medical standards for guidance of the Defence Services Medical Boards. However, if the physical capacity of a person either deteriorates or improves after demobilisation, the employing authority may require a fresh medical examination by the appropriate Civil Medical Board. In that case also the Medical Board will follow the norms laid down for the Defence Services Medical Board and if the disabled per--

-- p.5 --

309

sonnel are found fit for discharging the duties of the posts, they will be considered as medically fit.

(ii) Relaxation in age limit

(a) Posts filled on the results of competitive examination.—The disabled Defence Services personnel will be eligible for appointment to Group 'C' posts, which are filled on results of competitive examinations conducted by the Staff Selection Commission and other bodies provided they are educationally qualified. For appearing at the examination, they would be allowed a relaxation of the age limit up to three years (eight years in the case of disabled Defence Services personnel belonging to SC/ST) in excess of the prescribed upper age limit, subject to the condition that they would not be allowed to avail of a larger number of chances in respect of recruitment to a service, or group of services, than the maximum number of chances permissible to any general candidate under the age limit.

(b)

Posts filled through Employment Exchanges.—For appointment to Group 'C' and 'D' posts, which are filled through the Employment Exchange, the disabled Defence Services personnel would be allowed relaxation of the age limit up to 45 years of age (50 years in the case of disabled Defence Services personnel belonging to the SC/ST), or provided they satisfy the age limit prescribed for a particular post after deducting the period of their service in the Armed Forces from their actual age and adding three years thereto, whichever may be more advantageous to them.

(iii) The procedure for notifying vacancies in Group 'C' and Group 'D' posts indicated in the Department of P & AR, O.M. No. 13/34/71-Estt. (C), dated the 1st February, 1972 for effective rehabilitation of war-disabled ex-servicemen and eligible dependants of Defence Services personnel killed or severely disabled in action in Group 'C' and Group 'D' posts would also be followed in the case of ex-servicemen disabled during peace-time and dependants of the Defence Services personnel killed or severely disabled in peace-time.

(iv) As regards educational qualifications, the disabled Defence Services personnel who are considered for appointment to Group 'C' posts filled through the Employment Exchanges, but who do not possess the required educational qualifications, would not be considered ineligible for appointment merely on that account. Their ability to discharge the duties expected of the incumbents of the particular Group 'C' posts should be assessed by the appointing authority on the basis of suitable tests which should be designed for the purpose by the authority. As regards appointment to Group 'D' posts, the prescribed minimum educational qualification of

Middle School standard or a lower standard will be relaxed in case of those disabled Defence Services personnel who have put in three years of service before being invalidated from the Military service, or whose total service in the Defence Forces and a civil department is not less than three years.

(v) When a disabled Defence Services personnel is available and is sponsored by the Ex-servicemen Cell of the D.G.E. and T. or the Employment Exchanges, he shall

- not be refused employment, provided he fulfils the minimum requirements of the job. The posts reserved for ex-servicemen/disabled ex-servicemen and those which are to be utilized for the recruitment of the priority categories should not be filled through any other source without first making a reference to Ex-servicemen Cell of the D.G.E. and T. or the Employment Exchanges, and D.G. Resettlement, Ministry of Defence, and obtaining a non-availability certificate.

-- p.6 --

(vi) Evidence of Age qualifications.—For purposes of claiming the age concessions referred to in (ii) (a) and (b) above, a certificate from the Director General, Resettlement, Ministry of Defence will be accepted as documentary evidence in support of the claim of disabled Defence Service personnel.

1M.1-1.A., (Dept. of Personnel and Adm. Reforms) U.M. No. 39016/5/81-Esti (C), dated the 21st February, 1981.]

Relaxation admissible only for the first civil employment.—It has been decided that once an ex-serviceman has joined the Government job on civil side after availing of the benefits given to him as an ex-serviceman for his re-employment, his ex-serviceman status for the purpose of re-employment in Government ceases. On his joining the civil employment, he is deemed to be a civil employee and will be entitled to only such of the benefits like relaxation of age etc. as admissible to civil employees in the normal course in accordance with the existing instructions in this regard, subject to other conditions governing the grant of such benefits.

[DOP&T O.M. No. 36034/27/84-Estt. (SCT), dated the 2nd May, 1985.]

Special Recruitment procedure by pooling vacancies reserved for Ex-servicemen.—The following procedure should be followed and any difficulty in implementation sorted out in consultation with the D.G. (Resettlement). This procedure will, however, not be applicable to such of the posts which are filled centrally through recruiting agencies like Staff Selection Commission.

2. Vacancies existing in Groups 'C' and '13' in various offices under each Ministry should be pooled at a Central level (either Zonal or Divisional or Circle) for determining the vacancies which can be earmarked for ex-servicemen. This will ensure that small number of vacancies in small offices are also taken into consideration. Out of the vacancies so pooled, the share of each beneficiary, i.e., the Scheduled Castes, the Scheduled Tribes and the physically handicapped including their carried forward reservation should be identified in accordance with the existing orders and instructions of the Government. The gap between the 50% of the total vacancies so pooled in any recruitment year and the percentage of total reserved vacancies, so identified for SC/ST and the physically handicapped, will determine the number of vacancies to be filled by the Ex-servicemen.

3. Wherever it is considered necessary, the vacancies reserved for Ex-servicemen should be segregated from the normal recruitment procedure and a Special Selection Board should be constituted to undertake the process of recruitment through prescribed recruiting agencies. A representative of the DG(R) may also be associated with such Boards or with the normal recruitment procedure relating to Ex-servicemen.

4. The reserved vacancies for Ex-servicemen should be notified to the DG(R) and the Rajya and Zilla Sainik Board and an advance notice preferably 3 months is to be given to these

organisations. The vacancies should also be advertised through the local newspapers which would enable the Ex-servicemen to apply direct to the recruiting agency.

5. The schedule of Special recruitment may be drawn up by the concerned Ministries and Departments in consultation with the DG (R) so that such exercise in an organisation does not clash with the recruitment exercise in another organisation.

6. In order to make it more convenient for the Ex-servicemen to apply for recruitment, a common application form (printed below) may be prescribed, with the minor modification if considered absolutely necessary and the format of the application may be inserted in the advertisement invariably.

7. After the candidates are recommended, they have to be allocated to various offices by Zonal or Circle Headquarters.

-- p.7 --

8. A report on the Special Recruitment drive undertaken in each recruitment year may be furnished to the Director General (Resettlement), Ministry of Defence annually.

[Dept. of Per. & Trg., U.M. No. 36034/11/85-Est t (SCT), dated the 12th September, 1986.]

APPLICATION FORM FOR GROUP POSTS

(Retired Defence Service Personnel)

1. Personnel number, Rank & Name

2. Arm/Service .

3. Father's Name

4. Dates of:--

(a) Birth: .

(b) Enrolment:

(c) Retirement/Discharge:

5. Reasons for release/discharge

6. Medical Category

7. Award or Decoration

8. Home, District and State

9.

Present address/Mailing address

10. Permanent address

11. Present profession/employment

.

12.

Qualification:—(Please attach attested copies of mark sheets)

. Please paste your

. photograph (passport

. size) in uniform

Course

Year Institution

Civil Equivalent

(a) Civil (educational)

.

(h) Military (educational)

(c) Military (Professional)

13. Languages known

Read

Write

Speak

(a) Indian

(b) Foreign

.

14. Character as assessed by Military authorities

15. Extra Curricular activities:

(a) Sports

.

(b) Literary

.

(c) Cultural/Art.

16. Details of pay/pension/gratuity:

(a) Last basic pay drawn

(b) Total emoluments

.

(e) Details of pension/gratuity

17. Zila Sainik Board/Employment Exchange (Registration

No.)

IS.

Job applied for

(

)

Signature

Date

Name

Address

*Countersigned

*Applicable where applications are not made directly.

-- p.8 --

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HIGH LEVEL COMMITTEE ON PROBLEMS OF EX-SERVICEMEN

The following recommendations of the High Level Committee on the problems of ex-servicemen given in para 15.10 of its Report have been accepted by the Government :

(1) The procedure for dereservation of reserved posts for ex-servicemen be done strictly in accordance with the existing rules;

(2) Directorate General Resettlement should be given '30 clear days for confirmation regarding 'non-availability' of ex-servicemen for specific posts; and

Number of posts, reserved for ex-servicemen, but not filled in any particular year is to be added to the number of posts falling to the share of ex-servicemen, in the next year. This, of course, is without disturbing the general policy of reservation for other categories for whom reservation is available and subject to the condition that the upper ceiling of 50% for total reservation as prescribed in terms of Supreme Court Judgement, is adhered to.